

		California Code of Civil Procedure section 431.30(c) states plainly that affirmative relief may not be claimed in the answer. (CCP § 431.30) The answers and counterclaims must be filed in separate documents. Greget and NuEyes are ordered to file and serve their second amended answer and first amended cross-complaint within 20 days. The Court notes that Greget and NuEyes have a motion for leave to amend pending and The Bowie parties have a motion to strike portions of their answers. Greget and NuEyes have represented that their amendments will resolve some or all of the issues in the Motion to Strike. Greget and NuEyes are permitted to remove/narrow claims and affirmative defenses, fix typos, and add allegations regarding the existing defamation claims by Greget. No additional cross-claims are permitted, only facts supporting existing claims. For Greget, that is only two claims for defamation. (See ROA 90, 94.) The Bowie parties will then have 30 days from service to respond to the first amended cross-complaints. The Court takes off calendar the 7/13/26 Motion to strike and the 11/30/26 Motion for leave to amend as they will be mooted by this Order. The Bowie parties are ordered to serve notice of this ruling.
3	Comer vs. Mercury Insurance Company 2023-01322938	Motion to Reinstate Punitive Damage Allegations and Prayer and Compel Asset Discovery Plaintiff James Comer's Motion to Reinstate Punitive Damage Allegations and Prayer and Compel Asset Discovery is denied. On or about 8/28/24, the Court granted Defendant Mercury Insurance Company's motion to strike punitive damage allegations "without prejudice to Plaintiff bringing a motion to amend after conducting discovery." In doing so, the Court stated: "Plaintiff has not alleged facts showing acts reflecting malice, oppression or fraud that were authorized or ratified by an officer, director, or managing agent of Defendant rather than the conclusions." (ROA 96.) Plaintiff's current motion is denied, because it does not comply with the procedural requirements for a motion for leave to amend. (See Code Civ. Proc. § 473, subd. (a)(1) ["The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend

		any pleading”]; see also Code Civ. Proc., § 576 [“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order”].) A motion to file an amended pleading must be accompanied by a copy of the <i>proposed amended pleading</i> and state what allegations are proposed to be deleted, or added, if any, and where, by page, paragraph, and line number. (Cal. R. Court 3.1324(a).) It also must include a supporting declaration explaining: “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. R. Court 3.1324(b).) This motion is denied without prejudice to Plaintiff filing a proper motion for leave to amend. Defendant shall give notice of the ruling.
4	Deharo vs. Kola Hotel, LLC 2024-01419171	Motion to Compel Deposition (Oral or Written) Plaintiff Almadelia Deharo’s (“Plaintiff”) motion to compel the deposition of Defendant Vagabond Inn Corporation’s (“Defendant”) person(s) most qualified is granted in part and denied in part. The request for an order compelling the deposition of Defendant’s person most qualified, with production of documents, is denied as moot, because Defendant produced its witnesses for deposition after this motion was filed, but before this motion was heard. To the extent Plaintiff is not satisfied with the answers or objections given at the deposition(s), her remedy is to bring a motion to compel under CCP section 2025.480. The Court cannot provide relief that was not requested in the notice of <i>this</i> motion. (<i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1125.) The request for an award of sanctions is granted. (Code Civ. Proc., § 2025.410, subd. (d).) The Court finds Plaintiff reasonably waited for several months for Defendant to produce its witnesses before bringing this motion; and, that Plaintiff’s counsel made several attempts to informally resolve this motion before it was filed. In connection with the motion, Plaintiff is awarded reasonable sanctions in the amount of \$3,000 against Defendant Vagabond Inn Corporation. The sanctions are payable within 30 days to The Garza Firm. Plaintiff is ordered to give notice of the ruling.